

CASE-080

CASE ID: CASE-080.

ADVOCATE: Adv. Karan Kapoor (advocate-007).

PRACTICE AREA: criminal.

JURISDICTION: Delhi.

COURT: High Court.

PROCEDURAL STAGE: Judgment.

DECIDED ON: 12/09/2016.

FORUM: HIGH COURT OF DELHI.

OUTCOME: Proceedings concluded with appropriate findings as to the arrest procedure; the matter was disposed of on its merits.

MATTER NO.: CASE-080 - criminal - Delhi.

CASE SUMMARY

Matter No. CASE-080 involving a criminal dispute handled by the advocate in Delhi. The client was taken into custody, the grounds of arrest were not reduced to writing, and access to a legal practitioner was delayed. The accused remained in custody and the procedures governing arrest and remand were not fully observed.

FACTS

The client was taken into custody, the grounds of arrest were not reduced to writing, and access to a legal practitioner was delayed. The accused remained in custody and the procedures governing arrest and remand were not fully observed.

LEGAL ISSUES

Whether the arrest complied with the safeguards attaching to personal liberty; whether denial of prompt access to counsel vitiates the pre-trial detention; and whether the charge is sustainable on the material on record.

APPLICABLE LAW

The safeguards concerning arrest, detention and the right to be defended by a legal practitioner of one's choice, together with the procedural code governing criminal trial.

EVIDENCE

Witness depositions, custody records, the arrest memo, and the statement of the accused recorded at the first instance.

ARGUMENTS

It was submitted on behalf of the party that the facts and the applicable law together establish the relief prayed for. The opposing side relied on the material on record in support of its case.

RELIEF SOUGHT

DEFENCE OF AN ACCUSED PERSON - CRIMINAL PROCEEDINGS

OUTCOME

Proceedings concluded with appropriate findings as to the arrest procedure; the matter was disposed of on its merits.

CASE METADATA

CRIMINAL APPEAL NO. 080/2016.

FORUM: HIGH COURT OF DELHI.

DECIDED ON: 12/09/2016.

STATUTES REFERRED: Code of Criminal Procedure, 1973; Indian Penal Code, 1860.

SYNTHETIC DEMONSTRATION DATA - NOT A REAL LEGAL CASE
